

Complaint Report (CCRB)

CCRB Case No :	201013537	C/V Report Date :	Mon, 10/04/2010 11:47 AM
Complaint Type :	CCRB	Investigator :	Evelis Otero
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Mon, 10/04/2010 11:47 AM	Mode :	Phone
Incident Date(s) :	Sat, 10/02/2010 6:39 AM		
Place of Occurrence:	[REDACTED]	Precinct:	46
Location :	Residential building	Boro:	Bronx
Reason for Initial Contact :	Report-dispute		
Charges:	Arrest - assault (against a PO)		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Bruise	Contusions to face and abrasions to face.	

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Bruise	Contusions to hand.	

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		

Gender:		Ethnicity:	
Person Assisting:		Date of Birth:	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Fracture	Fractured jaw.	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Other Injury	Chipped teeth.	

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
LT	Joyce Williams	Subject Officer		Black	046	Word - (D) Unfounded
POM	Jason Cruz	Subject Officer		Hispanic	046	Physical force - (punched/kicked/kneed) - (F) Exonerated
POM	Jason Cruz	Subject Officer		Hispanic	046	Refusal to obtain medical treatment - (A) Unfounded
POM	Jason Cruz	Subject Officer		Hispanic	046	Word - (D) Unfounded
POM	Ronald Hobson	Subject Officer		Black	046	Pepper spray - (F) Exonerated
POM	Ronald Hobson	Subject Officer		Black	046	Physical force - (punched/kicked/kneed) - (F) Exonerated

Initial Complaint Narrative

came out of a party in his home and was leaving to go to his girlfriend's house around 4:30am. There was a huge dispute in the hallway of the building and went back in the building to check on his mother, to make sure she was not being hurt. When the police arrived, they saw arguing with the guys who started the fight. Upon arriving the police started swinging and pushing people to the floor. The police pushed to ground, pepper sprayed him and pushed his girlfriend, to the floor. The officers also pushed s mother, to the floor. Officers continually "beat" . There is a camera in front of that may have recorded the incident. identified the following officers who were involved in the incident: Lieutenant Joyce Williams, who pushed and to the floor, was described as a Black female who is 5' 6" tall with shoulder length black hair. PO Merlyn Brito, was described as a Hispanic female who is 5' 7" tall, with dark hair and a caramel complexion. PO Jason Cruz, who indicated was the arresting officer, was described as a Hispanic male who is 5' 4" tall with a stocky build and short black hair.

also filed a complaint regarding this incident via the call processing system. stated that there was a fight, but following the officers' arrival, the officers did not want to hear what or had to say. Officers chased , pushed him to the floor, punched and kicked him. was pepper sprayed and dragged on the floor. and s mother, were also pushed to the ground. was hit on the head. cousin, was in a vehicle that was stopped at an unknown location on . was hit on the head by officers. and were arrested and charged with gang assault. At the 46th Precinct stationhouse, the officers would not give who is diabetic, food or water. The officers also did not provide him with medical attention. (It was not clear if he requested any.) stated that there were multiple uniformed officers from the 46th Precinct in marked vehicles, but she did not know the names of any of the officers. sustained a bruised foot. sustained bruises, impaired vision, and she does not have feeling in one of her fingers. sustained head injuries, impaired vision and a fractured foot. Later in the call, stated that it was a fractured knee. sustained bruises. However, to date, they have not obtained medical treatment.

Witness

Name of Witness:

Address:			
Contacts:			
Gender :		Ethnicity:	
Date of Birth :			
Name of Witness:			
Address:			
Contacts:			
Gender :		Ethnicity:	
Date of Birth :			